

JUSTIFICATION
FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs (VA)
Office of Procurement, Acquisition, and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724

2. Description of Action: The proposed action is for a sole source Firm Fixed Price (FFP) and Time and Materials (T&M) Task Order (TO) to be issued under the Transformation Twenty-One Total Technology Next Generation (T4NG) Contract number VA118-16-D-1003 with GovernmentCIO, LLC (referred to herein as GCIO) for the renewal of brand name Keeper software as well as product enhancement, product support, and help desk services for the Veterans Legacy Memorial (VLM) website.

3. Description of the Supplies or Services: VLM is an interactive online memorialization website designed to honor the service and sacrifice of our nation's Veterans. This digital memorial space allows visitors to honor, cherish, share and pay respect to Veterans interred and inurned at VA national cemeteries. The VLM website was built using Keeper, a Commercial-off-the-Shelf (COTS) software, which requires renewal and maintenance of a single Keeper license each year to ensure seamless support. Keeper software is the foundation through which the VLM website has been developed. Specifically, Keeper software manages all components of the VLM website which includes a profile page for over 10 million Veterans and allows for the enhancement of Veteran profile pages with custom end-user tools for Veteran memorialization such as the ability to upload photos and provide comments, submit tributes, Geographic Information System (GIS) mapping of burial sites and provides a web cloud in support of the Veteran. The Contractor shall provide associated development services for Keeper software which includes custom integration and maintenance. VA requires a solution that is interoperable and compatible with its existing developed platform, as well as support services for the VLM website including Project Management, VLM Operational Support, Agile Development, Help Desk Support, Content Moderation, enhancements, integration, deployment, configuration, ongoing operations and maintenance support and the full testing of all VLM functionality. VA also requires optional tasks for further development services for Keeper software, specifically, agile development teams, which may be exercised in the base and any option period and warranty support and transition support, which may be exercised once in any option period.

The period of performance for this proposed action shall consist of a 12-month base period, two (2) 12-month option periods and three (3) optional tasks. The total estimated value of the proposed action is [REDACTED] (inclusive of options and optional tasks).

4. Statutory Authority: Pursuant to Federal Acquisition Regulation (FAR) Overhaul VA Deviation 16.507, the following brand name requirement is being justified and approved

as an exception to fair opportunity under the statutory authority of Section 41 U.S.C. 4106(c)(2) as implemented by FAR Overhaul VA Deviation 16.507-6(b)(2), entitled "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized."

5. Rationale Supporting Use of Authority Cited Above: The proposed source is GCIO, 101 Constitution Ave, Washington D.C. 20001. No other source, other than GCIO, can meet the Government's requirements as documented below.

Due to a teaming agreement GCIO entered on May 27, 2025 with Keeper Software, no other vendor will have access to the custom code of the VLM platform, thereby requiring a complete redevelopment effort. No other brand name software, other than the Keeper software, can meet all of VA's requirements without a significant redesign and redevelopment of the VLM website. Extensive effort was completed over a five year period with VA managed data that was configured to work with Keeper software, which required significant business rule management and data manipulation. As a result of this extensive effort, only Keeper brand name software can meet all of VA's requirements without the aforementioned redesign and redevelopment of the VLM website. In addition, no other brand name software, other than Keeper software, can meet all of VA's interoperability and compatibility requirements. Specifically, the VLM website and various VA managed databases are configured to work with Keeper brand name software. For example, the Burial Operations Support Systems Enterprise is a system of systems which is the backbone of the National Cemetery Administration (NCA), supporting all burial data for VA's Veterans, spouses and dependent children and is configured to work with Keeper brand name software. Additionally, the VLM Customer Database maintains and manages user provided content for Veteran profiles, such as photos, mementos and other documents pertaining to the Veteran's life experience, is only configured to work with Keeper brand name software. Lastly, the database that stores GIS location data and marker photos on a Veteran's profile page, is configured to work with Keeper brand name software. The redesign and redevelopment required if VA used any other brand name software includes development for customized business rules and other VA specified abilities such as uploading photos and providing comments, submitting tributes, GIS mapping of burial sites and providing a web cloud in support of Veterans. Specifically, a redesign of these features and functionality would result in redevelopment of thousands of lines of code, redevelopment of existing unique functionality, remapping of extensive business rules to ensure data integrity and accurate alignment of user supplied content to Veteran profile pages. This would result in significant duplication of cost of at least \$12M that cannot be recovered through competition and extensive delivery delays of approximately 24 months, which are further explained below. These estimates of duplicative costs and time are based on previous similar efforts.

The Government does not possess any intellectual property/source code that can be used for competition. Specifically, Keeper owns all the rights to the intellectual

Commented [JB1]: I understand we can say no one else has the access but how can we say no one else has the knowledge? They just signed the teaming agreement in May and/or someone could have left the OEM or incumbent vendor with knowledge and now working somewhere else. I would remove the "or have the knowledge"

Commented [CM2R1]: removed

property/source code for the underlying software that VLM is built upon and GCIO, as discussed above, is the sole provider of the Keeper software. Keeper retains limited rights in the technical data and restricted rights in the COTS software that powers the VLM website. The intellectual property rights for the Keeper software, including the enhancements, the unique and highly specialized services needed for the continued development and sustainment for this follow-on effort, make GCIO the only source capable of providing the required services. Without access to the intellectual property rights of the Keeper software, no other source could provide the renewal of brand name Keeper software and associated development services related to Keeper. Access to the intellectual property rights for the Keeper software is also required to ensure all the services provided are properly configured. Only GCIO can provide the support services for the VLM website as GCIO developed the website and is the only vendor authorized to manipulate the Keeper proprietary data of the website. Only GCIO can ensure the above listed services are provided due to its access to the aforementioned intellectual property/source code. To achieve the same capabilities, another vendor's software code would need to be redeveloped to meet the customized business rules already developed for VLM and to support the current level of code being provided. Additionally, the use of any other source would require not only one task order dedicated to the redevelopment of the current VLM website, but also a second, concurrent task order to provide support and sustainment services that would be needed during this redevelopment for a time period of approximately 24 months. Additional costs would therefore be incurred because sustainment and support would be required for such elements as VA Enterprise Cloud hosting, Application Programming Interface (APIs) and data integrations, data mappings, security controls, moderation and administrative modules and platform optimization that are part of the overall VLM website. These costs cannot be recovered through competition. Ultimately, only GCIO can ensure that NCA receives the Keeper software and associated development services as well as the support services for the VLM website it requires without substantial duplication of cost as outlined above, the additional costs of having a parallel effort, and unacceptable delays of at least 24 months, in meeting NCA requirements. These estimates are based on previous similar efforts.

VA's current TO with GCIO is set to expire on February 15, 2026. NCA's requirement for a sustained and enhanced VLM website will unnecessarily be delayed at least 24 months if the VLM website were to be re-created. These delays will undoubtedly impact the NCA VLM mission and will create significant delays in meeting the Agency's continued requirements for the VLM website. If there is a transition, the user experience will stagnate as no new functionality would occur during this period; only sustainment would exist for the current site. For example, if VA requires a new cemetery to be added to the VLM website during this timeframe, it would not be possible and would degrade service to the Veteran community. Additionally, APIs, data integrations and data transformations will need to be rebuilt, leading to downtime and degradation of services.

6. Efforts to Obtain Competition: Market research was conducted, details of which are in Section 8 of this justification. This effort did not yield any additional sources that can meet the Government's requirements. There is no competition anticipated for this

acquisition. In accordance with FAR 5.301 and 16.505(b)(2)(ii)(D), the award notice for this action will be synopsisized on Contract Opportunities and the justification will be made publicly available within 14 days of award.

7. Actions to Increase Competition: The Government will continue to conduct market research to ascertain if there are changes in the marketplace that would enable future actions to be competed.

8. Market Research: The Government technical experts perform market research by conducting internet searches and staying abreast of the current technologies in the field of memorialization software. Specifically, market research was conducted in August 2025 by Government technical experts by posting a draft Performance Work Statement issued under Request for Information (RFI) number 36C10B25Q0498 to Sam.gov. This RFI sought sources to provide Keeper software and services or alternate software and services that could meet VA's needs. The RFI yielded four (4) responses to include one (1) large business: GCIO; one (1) small business: Dark Consultancy, and two (2) Service-Disabled Veteran-Owned Small Businesses: EMD Strategies and Insignia Technology Services. Of the four (4) respondents, none proposed an alternative COTS solution. Two (2) of the respondents (EMD Strategies and Insignia Technology Services) proposed open source solutions, which did not meet the requirements outlined in Section 5 and would require an extensive redevelopment effort to accurately meet the current functionality of the VLM website. Three (3) respondents (Dark Consultancy, EMD Strategies, and Insignia Technology Service) do not have access to the software that the platform was built upon and therefore any new solution would not be interoperable or compatible with our existing platform without significant duplication of time and costs. In addition, two (2) of the respondents (EMD Strategies and Insignia Technology Services) stated they could provide Keeper software. However, as discussed in Section 5 above, and confirmed with Keeper, no other sources are permitted to provide the Keeper software to VA other than GCIO. Finally, GCIO responded to the RFI that it can meet all of the VA's requirements which was confirmed through its RFI response. In September 2025, the Government contacted the above three sources and advised them that they could not meet VA's requirements. No objections were received.

9. Other Facts: None.